

LORI SKIPPER
900 9th Ave East
Palmetto, FL 34221

IN THE COUNTY COURT OF THE 12TH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA
CIVIL DIVISION

FILED FOR RECORD
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CLERK OF CIRCUIT COURT
MANATEE COUNTY, FLORIDA

COLONIAL MANOR MHC HOLDINGS, LLC

ET AL

Plaintiff AND CROSS COMPLAINT
DEFENDANT,

vs.

LORI SKIPPER,

DEFENDANT, CROSS COMPLAINT
PLAINTIFF

CASE NUMBER: 2021CA4553

MOTION FOR PROTECTIVE ORDER AND INJUNCTIVE RELIEF

BACKGROUND

On or about the 4th day of November, 2021, the Plaintiff And Cross Complaint Defendant filed suit in this Court making several allegations towards Lori Skipper, Defendant, Cross Complaint Plaintiff.

ARGUMENT

Roberts v. Amtrust Bank, S.D. Fla., “Under Florida law, to state a cause of action for intentional infliction of emotional distress, a complaint must allege four elements: (1) deliberate or reckless infliction of mental suffering; (2) outrageous conduct; (3) the conduct caused the emotional distress; and (4) the distress was severe.

Whether conduct is outrageous enough to support a claim for intentional infliction of emotional distress is a question of law, not a question of fact.

Under Florida Criminal Code: 914.22 Tampering with or harassing a witness, victim, or informant; penalties.—

(1) *A person who knowingly uses intimidation or physical force, or threatens another person, or attempts to do so, or engages in misleading conduct toward another person, or offers pecuniary benefit or gain to another person, with intent to cause or induce any person to:*

(a) *Withhold testimony, or withhold a record, document, or other object, from an official investigation or official proceeding;*

(b) *Alter, destroy, mutilate, or conceal an object with intent to impair the integrity or availability of the object for use in an official investigation or official proceeding;*

(c) *Evade legal process summoning that person to appear as a witness, or to produce a record, document, or other object, in an official investigation or an official proceeding;*

(d) *Be absent from an official proceeding to which such person has been summoned by legal process;*

(e) *Hinder, delay, or prevent the communication to a law enforcement officer or judge of information relating to the commission or possible commission of an offense or a violation of a condition of probation, parole, or release pending a judicial proceeding; or*

(f) *Testify untruthfully in an official investigation or an official proceeding,*

commits the crime of tampering with a witness, victim, or informant.

(2) *Tampering with a witness, victim, or informant is a:*

(a) *Felony of the third degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084, where the official investigation or official proceeding affected involves the investigation or prosecution of a misdemeanor.*

(b) *Felony of the second degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084, where the official investigation or official proceeding affected involves the investigation or prosecution of a third degree felony.*

(c) *Felony of the first degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084, where the official investigation or official proceeding affected involves the investigation or prosecution of a second degree felony.*

(d) *Felony of the first degree, punishable by a term of years not exceeding life or as provided in s. 775.082, s. 775.083, or s. 775.084, where the official investigation or official proceeding affected involves the investigation or prosecution of a first degree felony or a first degree felony punishable by a term of years not exceeding life.*

(e) *Life felony, punishable as provided in s. 775.082, s. 775.083, or s. 775.084, where the official investigation or official proceeding affected involves the investigation or prosecution of a life or capital felony.*

(f) *Felony of the third degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084, where the offense level of the affected official investigation or official proceeding is indeterminable or where the affected official investigation or official proceeding involves a noncriminal investigation or proceeding.*

(3) *Whoever intentionally harasses another person and thereby hinders, delays, prevents, or dissuades any person from:*

(a) *Attending or testifying in an official proceeding or cooperating in an official investigation;*

(b) *Reporting to a law enforcement officer or judge the commission or possible commission of an offense or a violation of a condition of probation, parole, or release pending a judicial proceeding;*

(c) *Arresting or seeking the arrest of another person in connection with an offense; or*

(d) Causing a criminal prosecution, or a parole or probation revocation proceeding, to be sought or instituted, or from assisting in such prosecution or proceeding;

or attempts to do so, commits the crime of harassing a witness, victim, or informant.

(4) Harassing a witness, victim, or informant is a:

(a) Misdemeanor of the first degree, punishable as provided in s. 775.082 or s. 775.083, where the official investigation or official proceeding affected involves the investigation or prosecution of a misdemeanor.

(b) Felony of the third degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084, where the official investigation or official proceeding affected involves the investigation or prosecution of a third degree felony.

(c) Felony of the second degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084, where the official investigation or official proceeding affected involves the investigation or prosecution of a second degree felony.

(d) Felony of the first degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084, where the official investigation or official proceeding affected involves the investigation or prosecution of a first degree felony.

(e) Felony of the first degree, punishable by a term of years not exceeding life or as provided in s. 775.082, s. 775.083, or s. 775.084, where the official investigation or official proceeding affected involves the investigation or prosecution of a felony of the first degree punishable by a term of years not exceeding life or a prosecution of a life or capital felony.

(f) Felony of the third degree, punishable as provided in s. 775.082, s. 775.083, or s. 775.084, where the offense level of the affected official investigation or official proceeding is indeterminable or where the affected official investigation or official proceeding involves a noncriminal investigation or proceeding.

(5) For the purposes of this section:

(a) An official proceeding need not be pending or about to be instituted at the time of the offense; and

(b) The testimony or the record, document, or other object need not be admissible in evidence or free of a claim of privilege.

(6) In a prosecution for an offense under this section, no state of mind need be proved with respect to the circumstance:

(a) That the official proceeding before a judge, court, grand jury, or government agency is before a judge or court of the state, a state or local grand jury, or a state agency; or

(b) That the judge is a judge of the state or that the law enforcement officer is an officer or employee of the state or a person authorized to act for or on behalf of the state or serving the state as an adviser or consultant.

Since that time, answers and various motions have been filed by both parties in responsive pleading, one of which included a request for a protective order for Lori Skipper, Defendant, Cross Complaint Plaintiff, who has come under progressive attack, both directly and indirectly by the Plaintiff And Cross Complaint Defendant which includes stalking, spreading false rumors and harassment of Lori Skipper, Defendant, Cross Complaint Plaintiff at 6:30am by the Property Manager Cheryl Peake, an employee of Plaintiff And Cross Complaint Defendant Colonial Manor

Mhc Holdings, Llc, LLC and acts as a direct agent for said Plaintiff And Cross Complaint Defendant.

INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS

1. On multiple occasions, the property manager, Cheryl Peake, acting in her official capacity as par manager of Colonial Manor Mhc Holdings, Llc has deliberately and recklessly caused infliction of mental suffering of Lori Skipper by singleing out specific individuals who are know friends and associate of Lori Skipper, Defendant, Cross Complaint Plaintiff, and has harassed, made false claims, and lied about certain events relating to Lori Skipper, Defendant, Cross Complaint Plaintiff.

2. In past, the Property Manager, Cheryl Peake has outrageous behavior including sending rule violation notices to one person, George Yeske (A copy of which is attached and labeled Exhibit A) who is chairman of the rent negotiation committee of the HOA, claiming that a car parked on his lawn had been seen “numerous times” even though that car was delivered to its owner less than one week before the date of the notice and was the first time in the park for one evening; **given without permission, private phone numbers of other residents** to outside the park people including the phone number of Jose Vasquez, Treasurer of the HOA. All of this has been done with the full knowledge of Cheryl Peake, Property Manager at Colonial Manor Mhc Holdings, Llc who could not have documented these claims without t he knowledge and direction from Nate Nelson, who id an Executive with Kingsley Management, the owner of Colonial Manor Mhc Holdings, Llc and who describes himself as the District Manager for the Park’s district.

3. Most recently on December 29, 2021, Cheryl Peake was seen parked outside the home of Lori Skipper, Defendant, Cross Complaint Plaintiff at 6:30 am, a full 1½ hour before her normal work hours and was seen observing the movements of Daryll Shires, the common law husband of Lori

1
Skipper, Defendant, Cross Complaint Plaintiff. This action was directed at Lori Skipper, Defendant, Cross Complaint Plaintiff as another means intimidation and harassment due to the pending litigation. This type of outrageous conduct is perpetrated against MS Skipper with the intent and has become so severe as to cause loss of appetite, sleep and has had a negative effect on MS Skipper's health in general.

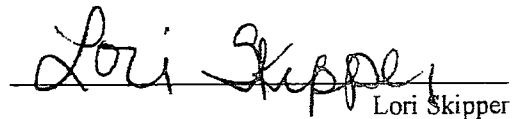
4. Furthermore, Lori Skipper, Defendant, Cross Complaint Plaintiff is the Vice President of a local, in park non profit organization called Friendly Neighbors helping Neighbors which runs various fund raising events to raise money to assist park residents who are suffering financial hardships, which includes providing food, utility assistance, home maintenance and repair assistance and other such help as a specific situation may call for.

5. On December 28, 2021, Mr. Shires assisted a resident with a temporary emergency exit ramp from a resident's home who is wheelchair bound and could not exit her dwelling without assistance, which is rarely available, leaving her trapped inside a house unable to get out in the event of a catastrophic life-threatening event. She was told by Cheryl Peakes, the Park Manager, that this ramp did not meet code. When Cheryl Peakes was confronted by George Yeske to show the code she was referring to, MS Peakes admitted that she didn't know of any such code. This is another instance of the Park Manager making up rules as she goes along and is done with no other intent than to intimidate, discredit, and harass Lori Skipper, Defendant, Cross Complaint Plaintiff.

6. All of these actions not only are malicious in their very nature and so outrageous that they are designed to inflict emotional distress in such a severe manner that the conduct likely exceeds the threshold of criminality as spelled out in 914.22 1 (e).

WHEREFORE: Due to the intolerable nature of this ongoing harassment and intimidation, Lori Skipper, Defendant, Cross Complaint Plaintiff has suffered immense emotional distress and pain, therefore asks the court to immediately enjoin Colonial Manor Mhc Holdings, Llc Plaintiff And Cross Complaint Defendant, their agents, employees, and specifically Cheryl Peake from contacting she, her associates, roommates or friends until such time as this matter is fully adjudicated and further enter an order to such effect and further refer this complaint to the local District Attorney's office for criminal investigation.

Respectfully Submitted this 29 day of December, 2021 by:


Lori Skipper
Defendant